Discuss and Possibly Adopt Revisions to Board Policy EFB (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy EFB Instructional Resources: Library Materials.

Explanation:
The Administration recommended revisions to Board Policy EFB Instructional Resources Library Materials. The Administration recommends that the updated Local Board Policy EFB be adopted as presented.

Policy Reference: EFB Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

~~**Note:** For information related to the selection of instructional materials, see EFA.~~

~~The District shall provide a wide range of library materials for students and faculty that support student achievement and present varying levels of difficulty, diversity of appeal, and a variety of points of view.~~

~~Collection Development Standards~~

~~In this policy, "library materials" may include printed and electronic library acquisitions, including online catalogs, and other ancillary or supplementary materials maintained in a campus library that enrich and support the state and local curriculum. Library materials should be of high interest to encourage student reading and learning.~~

~~The library collection standards shall apply to all library materials available for use or display, including materials contained in school libraries, classroom libraries, and online catalogs.~~

308

~~In developing library collections, the District shall consider age groups, grade levels, and access to library material by all students on a campus.~~

~~Protection From Inappropriate Material~~

~~Library materials shall not include "harmful material" as defined by Penal Code 43.24(a)(2); "obscene" material as defined by Penal Code 43.21(a)(1); any library material that is pervasively vulgar or educationally unsuitable as referenced in Board of Education v. Pico; or any other material legally prohibited from inclusion in a public school library. [See EFB(LEGAL)]~~

~~Library materials shall not include "sexually explicit material" as defined by Education Code 33.021. Library materials shall be consistent with the requirements set out in Education Code Chapters 33 and 35.~~

~~Obscene material is not protected by the First Amendment to the United States Constitution.~~

~~Library materials shall comply with the Children's Internet Protection Act (CIPA), including technology protection measures. [CQ]~~

~~Collection Development Goals~~

~~In addition to state law requirements, the District's library collections shall:~~

1. ~~Present multiple viewpoints related to controversial issues [see EMB regarding instruction about controversial issues].~~
2. ~~Provide a wide range of background information that will enable students to make intelligent decisions about their daily lives.~~
3. ~~Include accurate and authentic factual content from authoritative sources.~~
4. ~~Have a high degree of potential user appeal and interest.~~
5. ~~Offer a global perspective that promotes equity of access, including print and nonprint~~

materials such as electronic and multimedia, to meet the needs of individual learners.

6. Represent diverse viewpoints and cultures appropriate to each campus to ensure the collection embodies the unique background of its student population.

Selection

Library materials shall be chosen in accordance with guidelines adopted by the Texas State Library and Archives Commission. In the selection of library materials, librarians and other professional staff shall ensure that the library materials:

1. Enrich and support the Texas Essential Knowledge and Skills (TEKS) and take into consideration students' varied interests, abilities, learning styles, and maturity levels.

2. Support growth in factual knowledge, enjoyment of reading, fostering high-level thinking skills, literary appreciation, aesthetic value, societal standards, and personal learning.

3. Develop a balanced collection presenting multiple viewpoints related to controversial issues to foster critical thinking skills and encourage discussion based on rational analysis [see EMB regarding instruction about controversial issues].

4. Be appropriate for the subject area and for the age, intellectual development, and ability level of the students for whom the materials are selected.

5. Represent many ethnic, religious, and cultural groups and their contributions to the national heritage and world community.

6. Demonstrate literary merit, quality, value, and significance.

7. For non-fiction resources, include accurate and authentic factual content from authoritative sources.

8. Balance cost with need.

9. Are evaluated based on at least two of the five factors set out in Evaluation of Materials [See EFB(LEGAL)].

While reviews can be used to assist in the selection of library materials, their conclusions as to the appropriateness of any library material shall not be deemed conclusive.

Responsibility For Selection

The oversight for the purchase of all library materials is vested in the Board. Recommendations for the purchase of library materials shall be made by the coordinator for library services or other administrators designated by the Superintendent and must be consistent with this policy. The District shall ensure librarians, professional library staff, and other designated professional staff trained in the proper collection development standards select and acquire library materials in accordance with state laws and rules, this policy, and administrative procedures

Parental Involvement

The District recognizes that parents and guardians hold an essential role in the education of their children and have the right to guide what their children read as set forth in Education Code Chapter 26. While librarians are trained in selecting materials in accordance with Board policy and may provide guidance to students in selecting library materials, the ultimate determination of appropriateness lies with the parent or guardian.

The District shall focus on maximizing the involvement of and transparency with parents and guardians while meeting the educational needs of students by making access to its library catalogs available on its website at: Library Services — Conroe ISD.

The District shall post on its website a searchable list of library materials recommended for purchase

that are not currently included in a library collection. The list shall be available for public comment for 30 days prior to the purchase of the library materials at: Library Services — Conroe ISD.

Parents and guardians are encouraged to communicate with the campus librarian and their child's teacher any information regarding their student's self-selection of library materials. Any parent or guardian can select an alternative library material for their student. [For information on parental rights regarding instructional materials and other instructional resources see EFA(LEGAL).]

Secondary parents or guardians must provide written permission for their secondary student to access books in English Language Arts classroom collections. The classroom collection authorization form is available on the District's website: Instructional Materials — Conroe ISD.

The parent or guardian of a student in a college level course may give written permission to access a book not available in the school library or classroom collection.

A parent or guardian who wishes to access a school's library shall first submit a request to the principal. The principal or designee will work with the parent or guardian to determine a time to access the library that will not interfere with the delivery of instruction or disrupt student use of library services.

Parent Request For Library Restriction

A parent or guardian who wishes to access an online catalog shall submit a written request to the principal. The principal or designee shall respond in accordance with administrative procedures.

Library Book Notifications

Parents or guardians may choose to restrict their student from accessing library materials bysubmitting the electronic form available at Library Services — Conroe ISD.

Acquisition Procedure

The District shall email parents and guardians each time their student checks out library materials. A parent or guardian may opt out of receiving this notification.

Reconsideration Of Library Materials

Orders for the purchase of library materials shall be approved by the coordinator of library services in compliance with this policy.

A parent or guardian of a District student, a student who is currently enrolled, or a District employee may challenge a library material on the basis that the library material fails to meet the standards set forth in this policy.

Guiding Principles

The major criterion for the final decision on challenged library materials is the appropriateness of the material for its intended use by minor students along with compliance with state law and this policy. No challenged library material shall be removed solely because of the ideas expressed therein, the personal background of the library material's author, or the personal background of the characters in the material.

The following principles shall guide the Board and staff in responding to challenges of library materials:

1. A complainant may raise an objection to a library material used in a school's educational program, despite the fact that the professional staff selecting the materials were qualified to make the selection, followed the proper procedure, and adhered to the objectives for library material set out in this policy.

2. A parent's or guardian's ability to exercise control over instruction extends only to his or her own child as set forth in Education Code Chapter 26.

~~3. Access to a challenged material shall not be restricted during the reconsideration process, except the District may deny access to a child if requested by the child's parent or guardian.~~

~~Informal Reconsideration~~

~~When the District or a campus receives an objection to the appropriateness of a library material, the appropriate librarian or administrator shall try to resolve the matter informally. The librarian or administrator shall explain the selection process and discuss the intended purpose for the library material.~~

~~The librarian or administrator shall offer a concerned parent or guardian an alternative library material to be used by the concerned parent or guardian's child in place of the library material and, if requested, shall restrict the child's access to the material objected to by the parent.~~

~~Request For Formal Reconsideration~~

~~If an individual wishes to make a formal challenge, the administrator shall direct the complainant to the District's website Library Services — Conroe ISD or provide a copy of this policy and a form to request formal reconsideration of the library material.~~

~~Reconsideration Committee~~

~~A complainant shall make any formal challenge to a library material in current use or that has been removed through an informal reconsideration process by submitting a Reconsideration of Instructional Resource form available on the District's website at: Library Services — Conroe ISD. Upon receipt of the form, a reconsideration committee shall be assigned, and the from provided to the Board, the Superintendent or designee, and the school librarian.~~

~~The reconsideration committee shall include:~~

- ~~A non-voting committee moderator from the District;~~
- ~~A campus administrator;~~
- ~~A District-level professional staff member who is knowledgeable about the material and the District's curriculum~~
- ~~A campus educator; and~~
- ~~Four parents or guardians of currently enrolled students.~~

~~The District shall solicit parent or guardian committee members throughout the school year. Parent or guardian committee members shall be randomly selected, and their names shall remain confidential to the extent permitted by law.~~

~~All members of the reconsideration committee shall review the challenged library material in its entirety. As soon as reasonably possible, the committee shall meet and determine whether the challenged library material conforms to the selection criteria set out in this policy and whether the challenged library material shall continue to be used in the educational program. At the reconsideration committee meeting, the complainant shall have 10 minutes to make a presentation to the reconsideration committee and may provide the reconsideration committee with supplemental information. The complainant shall exit after presenting.~~

~~*Appeal*~~

~~The decision of the reconsideration committee shall be by simple majority.~~

~~Frequency Of Review~~

~~Absent extenuating circumstances, within 10 District business days of the reconsideration committee's meeting, the complainant shall be sent the reconsideration committee's report. The Board, the Superintendent, and other appropriate administrators shall also receive a copy of the committee's report. The report shall be posted on the District's website at: Library Services — Conroe ISD.~~

~~The complainant may appeal the decision of the reconsideration committee in accordance with the~~

~~**Gifts And Donations**~~

~~appropriate complaint policy, starting at Level Three. [See DGBA, FNG, and GF]~~

~~Maintenance Of Library Materials~~

~~After a library material has been reviewed through formal reconsideration, it shall not be reviewed again within two calendar years of the date of the reconsideration committee's decision.~~

~~Policy Review~~

~~The District shall accept gifts and donations to a campus library in accordance with this policy and CDC(LOCAL).~~

~~The Superintendent shall ensure administrative procedures are established that require regular assessment and evaluation for the periodic appraisal of library materials to ensure the library's goals, objectives, and information needs are serving the school community and include provisions for routine weeding and updating the collection. Disposal of any District-owned library materials shall be in accordance with Board policies and administrative procedures. [See CI]~~

~~This policy shall be reviewed at least every three years and revised as necessary.~~

312

Library Materials Defined

In this policy, "library materials" means any book, record, file, or other instrument or document in a District, school district's or classroom's library catalog. The term does not include instructional material, as defined by Section 31.002, or materials procured for the TexShare consortium under Subchapter M, Chapter 441, Government Code. Nothing in this Policy may be construed as limiting the acquisition of instructional material, as defined by Section 31.002, necessary for the teaching of, instruction in, or demonstration of knowledge of the essential knowledge and skills adopted under Section 28.002.

The library materials standards in the Policy shall apply to all library materials available for use or display or any form of student access, including materials contained or displayed in school libraries, classroom libraries, online catalogs, library mobile applications, and any other library catalog a student may access.

Prohibition on Pornographic Material

Unless required by state or federal law or the Texas Essential Knowledge and Skills, library materials shall not include pornographic material as defined in EMB (Local), including but not limited to "Harmful material" as defined by Section 43.24, Penal Code; "indecent content" that portrays sexual or excretory organs or activities in a way that is patently offensive; "profane content" including grossly offensive language that is considered a public nuisance; a library material rated sexually explicit material by the selling library material vendor; "sexually explicit material" as defined by Education Code 33.021; library material containing indecent content or profane content; any material that is pervasively vulgar or educationally unsuitable as referenced in Board of Education v. Pico; any material that refers a person to an Internet website containing pornographic material as described in this section of this Policy, including by use of a link or QR code, as defined by Section 443.001 of the Texas Health and Safety Code, or any other material legally prohibited from inclusion in a public school library. [See EFB(LEGAL) and EMB(Local)]. The possession, acquisition, and purchase of pornographic library materials is prohibited.

Library materials shall be consistent with the requirements set out in Education Code Chapters 33 and 35.

Obscene material is not protected by the First Amendment to the United States Constitution.

Library materials shall comply with the Children's Internet Protection Act (CIPA), including technology protection measures. [CQ]

Library Book Requirement/Superintendent Certification

All Library Materials shall be in accordance with Texas law and guidelines adopted by the Texas State Library and Archives Commission. Prior to presenting any Library Materials to the Board for approval, the Superintendent shall certify each Library Material:

1. Aligns with the Texas Essential Knowledge and Skills (TEKS)
2. Takes into consideration students' varied interests, abilities, learning styles, and

maturity levels.

3. Align with this Policy and Board Policy CH (Local), EMB (Local), EFA (Local) and EMI (Local).

4. Support growth in factual knowledge, enjoyment of reading, fostering high-level thinking skills, literary appreciation, aesthetic value, societal standards, and personal learning.

5. Develop a balanced collection presenting multiple viewpoints related to controversial issues to foster critical thinking skills and encourage discussion based on rational analysis [see EMB regarding instruction about controversial issues].

6. Be appropriate for the subject area and for the age, intellectual development, and ability level of the students for whom the materials are selected.

7. Represent many ethnic, religious, and cultural groups and their contributions to the national heritage and world community.

8. Demonstrate literary merit, quality, value, and significance.

9. For non-fiction resources, include accurate and authentic factual content from authoritative sources.

The Superintendent certification shall state that the Superintendent has evaluated the Library Materials for compliance with items 1-9 and certifies the Library Materials are in full compliance.

Existing Library Materials Certification

By no later than February 1, 2026, the Superintendent will certify to the Board that all Liberary Materials in the District comply with items 1-9 and this policy.

Parental Rights to Opt Out of Library Materials

The District recognizes that parents and guardians hold an essential role in the education of their children and have the right to guide what their children read as set forth in Education Code Chapter 26. While District employees may provide guidance to students in selecting library materials, the ultimate determination of appropriateness lies with the parent or guardian.

Searchable Library Catalog

The District shall allow efficient parental access to the catalog of all of the District's available library materials. The District shall focus on maximizing the involvement of and transparency with parents and guardians while meeting the educational needs of students by making access to its library catalogs. A library catalog shall be searchable by:

(1) the District

(2) individual campus; and

(3) individual classroom.

Searchable library catalogs will be available at: Library Services — Conroe ISD. The library catalogs shall include a warning that library materials may include objectionable materials and the procedure for the parent or guardian to restrict or opt their student out of access to the library materials.

Parent Library Opt-Out Process

Parents or guardians may choose to opt-out or restrict their student from accessing library materials by submitting the electronic form available at Library Services — Conroe ISD. The District may not allow a student to check out or otherwise use a library material the student's parent has included on this list. Any parent or guardian can select an alternative library material for their student. [For information on parental rights regarding instructional materials and other instructional resources see EFA(LEGAL).]

The parent or guardian of a student in a college level, dual credit, Advanced Placement, or similar course must give written permission to access a book not available in library materials.

A parent or guardian who wishes to physically access a District, campus or classroom library shall first submit a request to the principal. The principal or designee will work with the parent or guardian to determine a time to access the library that will not interfere with the delivery of instruction or disrupt student use of library services.

The District shall provide to parents or guardians a record of each time the parent's student checks out a library material. This record must include, as applicable, the library material's title, author, genre, and return date for the material. This includes library materials accessed at any time by students in classroom libraries.

School Library Selection Process

The Superintendent shall develop a District process to ensure:

1. Library Materials align with the Texas Essential Knowledge and Skills (TEKS);
2. District policies and procedures for the acquisition of library materials consistent with local community values;
3. Library Materials proposed for acquisition under Texas Education Code § 33.026, are appropriate for each grade level of the school or campus for which the library materials are proposed to be acquired and consistent with this Policy and Board Policy CH (Local), EMB (Local), EFA (Local) and EMI (Local);
4. If feasible, the District uses joint agreements or strategies for collaboration between the school district and local public libraries and community organizations;
5. The removal of any library materials inconsistent with this Policy;
6. There are policies and procedures for processing challenges received under Texas Education Code § 33.027; and
7. The action to be taken by the District in response to challenges received under Texas Education Code § 33.027.
8. No library material shall be possessed, acquired, or purchased if it is included on the list of rejected instructional materials maintained by the State Board of Education under Texas Education Code § 31.022(a).
9. Materials inconsistent with this Policy are not available in the District, including materials from employee home or private libraries

The Superintendent shall make a list of recommendations to the School Board regarding Library Materials, including donated items. The list will include the Superintendent's Library Materials certification. The list will include whether the Superintend recommends adding library materials to the school library catalog or removing library materials from a school library catalog following a challenge under Texas Education Code § 33.027. Prior to approval, the Board will make the Superintendent's list of library materials that have been donated to or that are proposed to be procured by a school library accessible for review by the public for at least 30 days before final Board approval.

The list of recommendations by the Superintendent shall be considered by the Board of Trustees. In making its recommendations, the Superintendent shall adhere to the library standards in Texas Education Code § 33.021.

The District shall not add donated library material to the school library catalog or otherwise make the donated library material available for student use unless the Board of Trustees approves the addition of that donated material for the grade levels for which the material is intended.

Board Approval of Library Materials

The Board of Trustees must approve all library materials that have been donated to or that are to be procured by a school library in the District, with the advice and recommendations of the Superintendent.

Public Review of School Library Materials List

The Board must approve or reject the list of library materials that have been donated to or that are proposed to be procured in an open meeting. The Board will ensure all books comply with the library standards in this Policy. This section does not apply to library materials that have been donated to or that are to be procured by a school library that:

(1) replace a damaged copy of a library material with the same International Standard Book Number that is currently in the school library catalog;

(2) are additional copies of a library material with the same International Standard Book Number that is currently in the school library catalog; or

(3) have the same International Standard Book Number and have been approved for the same grade levels by the board of trustees of the school district from a previous proposed list of library materials.

Each member of the Board of a school district is entitled to review each list of library materials that have been donated to or that are proposed to be procured by a school library in the district and propose changes to each list before the Board votes to approve or reject the list.

The Board shall approve or reject a list of library materials that have been donated to or that are proposed to be procured by a school library at the first open meeting of the board held on or after the 30th day after the date the list is made accessible for review by the public.

Challenge of Library Materials

A parent of or person standing in parental relation to a student enrolled in a school district, a person employed by the district, or a person residing in the district may submit a written challenge to any library material in the catalog of a school library in the District using on a form provided by the District. The District shall post the form on the district 's Internet website. The form shall require the person submitting the form to identify how the challenged library material violates the library standards approved under Section 33.021.

The Board of Trustees shall take action on a written challenge to any library material at the first open meeting of the board held after the 90th day after the date on which the school district receives a written challenge.

A school district that receives a challenge to a library material shall prohibit students enrolled in the district from accessing the library material until the district takes action in response to the challenge. If a challenge to a library material submitted results in the board of trustees, with the recommendation of the Superintendent removing the library material from a school library catalog, the board shall notify each teacher assigned as the classroom teacher at the grade level for which the library material was determined to be not appropriate and instruct the teacher to remove any copy of the library material from the teacher 's classroom library, if applicable.

If a challenge to a library material submitted results in the board of trustees, with the recommendation of the Superintendent not removing the library material from a school library catalog, the board is not required to take any action in response to a written challenge of the library material submitted before the second anniversary of the date of the determination to not remove the library material.

Appeal of District Action

A parent of or person standing in parental relation to a student enrolled in a school district, a person employed by the district, or a person residing in the district may submit to the district 's board of trustees an appeal of an action taken by the district in response to a written challenge to any library material in the catalog of a school library in the District.

The board of trustees shall take action on the appeal at the first open meeting of the board held after the date the appeal is filed.

Board Standard of Review of Written Challenge or Appeal

In taking action on a written challenge submitted or an appeal, the board of trustees shall consider:

(1) The advice of the Superintendent; and

(2) Whether the library material challenged or appealed is suitable for the subject and grade level for which the library material is intended, including by considering:

(3) Whether the library material adheres to the library standards approved under Section 33.021; and

(4) Reviews, if any, of the library material conducted by academic experts specializing in the subject covered by the library material or in the education of students in the subject and grade level for which the library material is intended.

316

The Superintendent shall ensure administrative procedures are in place to comply with this Policy. Disposal of any District-owned library materials shall be in accordance with Board policies and administrative procedures. [See CI]

Superintendent Authority

The Superintendent shall develop policies and procedures to ensure compliance with this Policy. The Superintendent shall certify to the Board of Trustees that the District complies with this Policy not later than February. 1. 2026.